

Calendar Line 1

Case Name: Freddy Andrade v. Advanced Surgicare, LLC et al.

Case No.: 24CV431328

This is an action for medical negligence brought by plaintiff Freddy Andrade (Plaintiff) against defendants Advanced Surgicare, LLC (Surgicare); Aravind Rangaraj, M.D. (Rangaraj); and Huy Nguyen, D.O. (Nguyen). The original and still operative unverified complaint was filed in February 2024. It alleges two causes of action: (1) medical negligence and (2) medical battery. Both causes of action refer generally to “Defendants.” There are no exhibits attached to the complaint. The complaint’s prayer originally included a request for punitive damages. That request was stricken under a stipulation and order in April 2024. Nguyen was dismissed from the case in February 2026.

At issue is Plaintiff’s motion for leave to amend to add a request for punitive damages under Code of Civil Procedure section 425.13, opposed by defendant Rangaraj. (Unspecified statutory references are to the Code of Civil Procedure.)

MOTIONS FOR LEAVE TO AMEND UNDER SECTION 425.13

“In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed.” (§ 425.13, subd. (a).) The plaintiff must show a “substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code.” (§ 425.13, subd. (a).) “The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such an order is not filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for trial, whichever is earlier.” (*Ibid.*)

Under section 425.13, a plaintiff “may not amend the complaint to include a punitive damages claim unless he both states and substantiates a legally sufficient claim.” (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 719-720 (*College Hospital*).) “[S]ubstantiation of a proposed punitive damages claim occurs only where the factual recitals are made under penalty of perjury and set forth competent admissible evidence within the personal knowledge of the declarant.” (*Ibid.*) “The motion must be decided ‘on the basis of the supporting and opposing affidavits presented.’ ” (*Cooper v. Superior Court* (1997) 56 Cal.App.4th 744, 749.) The court must “apply the standard of clear and convincing evidence, since that is the standard plaintiffs would ultimately have to meet in proving entitlement to punitive damages.” A “prima facie case of entitlement to punitive damages must meet the standard that plaintiffs will be likely to prevail by showing malice, oppression, or fraud by clear and convincing evidence.” (*Aquino v. Superior Court* (1993) 21 Cal.App.4th 847, 854-855; *Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 537.)

The protections set forth in section 425.13 apply “whenever an injured party seeks punitive damages for an injury that is directly related to the professional services provided by a health care provider acting in its capacity as such.” (*Central Pathology Service Medical Center, Inc. v. Super. Ct* (1992) 3 Cal.4th 181, 191.) Thus, although section 425.13 on its face applies only to actions involving “negligence,” its procedures must be followed even if the plaintiff alleges an intentional wrong such as fraud. (*Central Pathology, supra*, at p. 192.)

The court “must deny the section 425.13[,subdivision] (a) motion where the facts asserted in the proposed amended complaint are legally insufficient to support a punitive damages claim.” (*College Hospital, supra*, 8 Cal.4th at p. 719.) “The court also must deny the motion where the evidence provided in the ‘supporting and opposing affidavits’ either negates or fails to reveal the actual existence of a triable claim.” (*Ibid.*) The motion “may be granted only where the plaintiff demonstrates that both requirements are met.” (*Ibid.*)

Arguments made for first time in reply briefs are not considered. (*Tellez v. Rich Voss Trucking Inc.* (2015) 240 Cal.App.4th 1052, 1066.)

DISCUSSION

The complaint was filed February 16, 2024. The instant motion was filed February 17, 2026. But because February 16, 2026, was a holiday, Plaintiff’s motion was timely. (Civ. Code, §§ 10, 11.)

Plaintiff’s motion is supported by two declarations. The first is from Plaintiff’s counsel Theodore Olsen, which authenticates attached exhibits A-C. These are copies of a declaration from a custodian of records (exh. A), a consent form (exh. B), and a surgical report (exh. C). Counsel declares he received the documents in September 2025, approximately five months before this motion was filed. The Olsen declaration does not comply with California Rules of Court, rule 3.1324(b)(4), because it does not explain “why the request for amendment was not made earlier.” The motion also does not attach a copy of the proposed amended complaint, which is required by California Rules of Court, rule 3.1324(a).

The second declaration is from Plaintiff. The declaration describes Plaintiff’s discussions with Rangaraj before and after the surgery, Plaintiff’s dissatisfaction with the results of the surgery, and his current medical condition. Attached as exhibit A is a photograph of Plaintiff’s abdomen taken after the surgery.

Plaintiff’s motion is fatally deficient for failure to lodge a proposed amended complaint. Even if the failure to lodge the proposed pleading is overlooked, neither declaration submitted in support of the motion establishes a substantial probability that Plaintiff could prevail on a punitive damages claim. Neither declaration provides clear and convincing evidence that Rangaraj acted with malice, fraud, or oppression.

The clear and convincing evidence standard requires a finding of high probability so clear as to leave no substantial doubt. It must be sufficiently strong to command the unhesitating assent of every reasonable mind. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211–1212.) “The key element of clear and convincing evidence is that it must establish a high probability of the existence of the disputed fact, greater than proof by a preponderance of the evidence.” (*Nevarrez v. San Marino Skilled Nursing & Wellness Centre, LLC* (2013) 221 Cal.App.4th 102, 113.)

“Malice” is defined in Civil Code section 3294, subdivision (c)(1), as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.”

“Oppression” is defined as despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civ. Code, § 3294, subd. (c)(2).)

Where, as here, a complaint alleges conduct performed without intent to harm, a finding of “malice” for punitive damages purposes requires proof by clear and convincing evidence that a defendant’s tortious wrong amounted to “despicable conduct” and that such despicable conduct was carried on with a “willful and conscious disregard” of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1); *College Hospital, supra*, 8 Cal.4th at p. 725.) “Despicable” conduct is conduct that is “so vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down upon and despised by ordinary decent people.” (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715.)

Because no proposed amended complaint was lodged, the court assumes the only causes of action alleged against Rangaraj are the medical negligence and medical battery causes of action alleged in the operative complaint. Those allegations do not describe despicable conduct by Rangaraj or otherwise provide sufficient support for a request for punitive damages. Neither declaration submitted with the motion demonstrates that Rangaraj acted with malice, fraud, or oppression in taking the actions alleged in the complaint. The excerpts from Rangaraj’s deposition testimony submitted with the opposition do not, as the reply argues, provide any support for a finding of malice, fraud, or oppression.

More fundamentally, before Plaintiff could show a probability of prevailing on a request for punitive damages, he would first have to show a probability of prevailing on at least one of the underlying claims. “The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony.” (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606.) Plaintiff has not submitted any expert evidence suggesting that Rangaraj’s alleged actions fell below the applicable standard of care.

CONCLUSION

Plaintiff’s motion for leave to amend the complaint under Code of Civil Procedure section 425.13 is denied.

The court will prepare the order.

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Calendar Line 6

Case Name: Thomas Chapman v. City of Los Altos

Case No.: 26CV483963

This is an action for premises liability brought by self-represented plaintiff Thomas Chapman (Plaintiff) against defendant City of Los Altos (City).

The original and still operative complaint, a form complaint, was filed in January 2026. It alleges a single cause of action for premises liability. On the premises liability attachment, boxes are checked for three counts: (1) negligence; (2) willful failure to warn under Civil Code section 846; and (3) dangerous condition of public property. (Complaint, Prem.L-2 – Prem.L-4.) There are no narrative allegations. The complaint identifies August 1, 2025, as the date of injury. The injury is not described. (Prem.L-1.) Attached to the complaint as an unlabeled exhibit is a copy of a government claim form submitted to the City on August 8, 2025, with attached documents.

At issue is a demurrer to the complaint by the City that Plaintiff opposes.

LEGAL STANDARD FOR DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence when ruling on a demurrer. That includes declarations. The court has considered the declaration from counsel for the City only to the extent that it describes the meet and confer efforts required by Code of Civil Procedure section 430.41. The court has not considered the attached exhibits. The court has also not considered any portion of the declaration submitted by Plaintiff with the opposition, any of the attached exhibits, or any argument based on that extrinsic evidence. There is no authority that permits a party opposing a demurrer to submit a declaration or any other extrinsic evidence. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

The City demurs to the complaint on the grounds that it “does not state facts sufficient to state a cause of action, the pleading is vague and uncertain and/or fails as a matter of law.” (Notice of Demurrer and Demurrer at p. 1:24-25.)

Uncertainty

Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that the defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.)

The complaint is not detailed. But the City's arguments demonstrate that it understands what the complaint is attempting to allege. The court overrules the City's demurrer based on uncertainty

Failure to State Sufficient Facts

First Count

The first count of the complaint's cause of action for premises liability, negligence, fails as matter of law as alleged against the City.

A cause of action for common law negligence cannot be brought against a public entity. A public entity is not liable for injuries except as provided by statute. (Gov. Code, § 815; unspecified statutory references are to this Code.) Section 835 " 'sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property.' " (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1129 (*Metcalf*); accord, *Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.)

The City's demurrer to this count on the ground that it fails as a matter of law and fails to state sufficient facts is sustained. A plaintiff bears the burden of demonstrating that a defect identified on demurrer could be cured through amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.) Plaintiff's opposition does not meet that burden. Because a common law negligence cause of action cannot be brought against a public entity, leave to amend the first count for common law negligence is denied. (*Jenkins v. JP Morgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 535 (*Jenkins*) [leave to amend should be denied where the nature of the claim is clear and no liability exists under substantive law].)

Second Count

The complaint's second count alleges a willful failure to warn under Civil Code section 846.

Civil Code section 846 provides private property owners with general immunity where persons who enter their property for recreational purposes are injured. There is an exception to the immunity "where permission to enter for [recreational purposes] was granted for a consideration." (Civ. Code, § 846, subd. (d)(2).) But the statute does not apply to public entities like the City. (*Loeb v. County of San Diego* (2019) 43 Cal.App.5th 421, 436.)

The opposition does not address the limitations of a claim brought under Civil Code section 846. Because this count fails as a matter of law, leave to amend is denied. (*Jenkins, supra*, 216 Cal.App.4th at 535.)

Third Count

The third count is for dangerous condition of public property.

A dangerous condition of public property is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (§ 830, subd. (a).) A cause of action for dangerous condition of public property is statutory cause of action. The general rule is that statutory causes of action must be pleaded with particularity. (*Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d 780, 795 (*Lopez*); *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 (*Covenant Care*).) When a statutory cause of action is alleged, “the plaintiff must set forth facts in his complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate.” (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d. 1, 5.)

Section 835 provides that a public entity is liable for injury caused by a dangerous condition “if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

A claim alleging a dangerous condition may not rely on generalized allegations. It must specify in what manner the condition constituted a dangerous condition. A plaintiff's allegations, and ultimately the evidence, must establish a physical deficiency in the property itself. A dangerous condition exists when public property is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself, or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users. (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347-1348; see also *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 759 [“To establish a qualifying condition, the plaintiff must point to at least one ‘physical characteristic’ of the property.”].)

Here, the form complaint does not identify any physical characteristic of public property or allege how it caused an injury to a person or to personal property. The unlabeled documents attached to the complaint suggest the claim is based on the condition of the sidewalk outside Plaintiff's property. That is not sufficient. “Adoption of Official Forms [Judicial Council Forms] for the most common civil actions has not changed the statutory requirement that the complaint contain ‘facts constituting the cause of action.’ [Citation.] Thus, in order to be demurrer-proof, a form ‘complaint must contain whatever ultimate facts are essential to state a cause of action under existing statutes or case law.’” (*People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 184.) “The Judicial Council Pleading forms have simplified the art of pleading, and have made the task of drafting much easier. Nevertheless, in some cases more is required than merely placing an ‘X’ in a box.” (*Ibid.*)

Regarding the essential element of actual or constructive notice, the “primary and indispensable element of constructive notice is a showing that the obvious condition existed a sufficient period of time before the accident.” (*State v. Superior Court for San Mateo County* (1968) 263 Cal.App.2d 396, 400.) “Whether the dangerous condition was obvious and whether it existed for a sufficient period of time are threshold elements to establish a claim of constructive notice.” “Where the plaintiff fails to present direct or circumstantial evidence as to either element, his claim is deficient as a matter of law.” (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 317 (*Heskel*).) The defect must be “sufficiently obvious, conspicuous, and notorious that a public entity should be charged with knowledge of the defect.” (*Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 521 (*Martinez*).) “To establish actual notice, ‘[t]here must be some evidence that the employees had knowledge of the particular dangerous condition in question’; ‘it is not enough to show that the [public entity’s] employees had a general knowledge’ that the condition can sometimes occur.” (*Id.* at p. 519.) While the complaint has boxes checked for actual and constructive notice, there are no allegations as to how long the unidentified defect has existed or when actual or constructive notice occurred. (See complaint, Prem. L-4 a.)

A plaintiff has the burden of proving the existence of a dangerous condition and each element of a cause of action under Government Code section 835. A court may not presume that there was a dangerous condition merely because the plaintiff was injured. (*Sambrano v. City of San Diego* (2001) 94 Cal.App.4th 225, 241 (*Sambrano*); see also § 830.5, subd. (a) [“the happening of an accident which results in the injury is not in and of itself evidence that public property was in a dangerous condition”].)

The operative form complaint does not provide sufficient information to adequately allege a statutory cause of action for dangerous condition of public property. The opposition does not explain how this count could be amended, but does state additional details suggesting a reasonable possibility of amendment. The court will grant leave to amend. The court does not grant leave to add new causes of action or new parties. (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.)

CONCLUSION

The City’s demurrer to the complaint based on uncertainty is overruled.

The City’s demurrer to the first count for negligence on the ground that it fails as a matter of law and fails to state sufficient facts is sustained without leave to amend.

The City’s demurrer to the second count for failure to warn under Civil Code section 846 on the ground that it fails as a matter of law and fails to state sufficient facts is sustained without leave to amend.

The City’s demurrer to the third count for dangerous condition of public property on the ground that it fails to state sufficient facts is sustained with leave to amend. The court does not grant leave to add new causes of action or new parties.

Any amended pleading must be filed and served no later than October 2, 2026.

The court will prepare the order.

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